

the actions of Defendants and Defense Counsel Shalaby amounts to sanctionable conduct.

After careful review of the papers submitted by Counsel, and after applying the foregoing statutory and decisional authority, the Court finds good cause to make the following ruling and orders.

Ruling

1. Plaintiff Darshan Singh's Motion for Terminating Sanctions and Monetary Sanctions against Defendants Rudolph Sandoval and Anthony Roston are **granted**.
2. Defendants are ordered to serve code-compliant and verified responses to all outstanding discovery no later than five (5) days after the date of service of this order without further objections. All responsive documents must also be produced no later than five (5) days after date of service of this order.
3. Plaintiff's request for sanctions is granted against both Defendants and Counsel Andrew Shalaby, jointly and severally, in the amount of \$7,200 pursuant to Cal. Code of Civ. Proc § 2023.030(a). Sanctions are to be paid within ten (10) days of service of this order.
4. The Court provides notice that Defendants' failure to provide code-compliant verified responses to all outstanding discovery as set forth in this order will result in the Court issuing terminating sanctions pursuant to Cal. Code of Civ. Proc § 2023.030(d)(4), in which the Court will enter an order rendering a judgment by default against both Defendants.
5. Pursuant to Cal. Code of Civ. Proc § 2023.030(d)(2), the Court stays Defendants' Motions for Protective Order, currently on calendar for March 11 and March 18, 2026 until this order for discovery is obeyed. Both Motions are off calendar.
6. Defendants are ordered to prepare and e-file a proposed order that conforms to this ruling no later than five (5) days after the hearing, attaching a copy of this ruling.

6. 9:00 AM CASE NUMBER: C23-03283
CASE NAME: CANDELARIO BARRAGAN VS. SPECIALIZED LOAN SERVICING, LLC
***HEARING ON MOTION IN RE: RECONSIDERATION**
FILED BY: BARRAGAN, CANDELARIO
TENTATIVE RULING:

Summary

Plaintiff Candelario Barragan's Motion for Reconsideration is **denied** as set forth herein.

Background

This case involves a dispute between Plaintiff and Defendants relating to the mortgage and Home Equity Line of Credit pertaining to real property located at 3239 Doyle Lane, Oakley, CA, which is owned by Plaintiff.

On April 11, 2025, Plaintiff Candelario Barragan ("Plaintiff") filed a First Amended Complaint alleging Nine Causes of Action: (1) Declaratory Relief, (2) Quiet Title, (3) Violation of Cal. Bus. And Professions Code § 17200, (4) Violation of the Rosenthal Fair Debt Collection Practices Act, (5) Negligence, (6) Wrongful Foreclosure, (7) Unfair Competition, (8) Breach of Contract, and (9) Set Aside Trustee's Sale.

On April 30, 2025, Defendants Specialized Loan Servicing, LLC, Shellpoint Property Management, LLC, First Key Master Funding and Mason Yanowitz (collectively, "Defendants") filed a Demurrer to Plaintiff

Candelario Barragan's First Amended Complaint. The Demurrer was calendared for hearing on September 3, 2025 at 9:00 a.m. The basis for the demurrer to each of the nine causes of action is a failure to state facts sufficient to constitute a cause of action against Defendants pursuant to Cal. Code of Civ. Proc. § 430.10(e). The Demurrer was supported by a Notice containing the hearing date of September 3, 2025, Memorandum of Points and Authorities, Declaration of Counsel Jonathin C. Cahill, and a Request for Judicial Notice. The proof of service form shows that Counsel for Plaintiff, Ruben F. Arizmendi, Esq., was served by electronic transmission on April 30, 2025.

Pursuant to the Declaration of Defendant's counsel, Jonathan Cahill telephonically met and conferred with Plaintiff's counsel on April 21, 2025 prior to filing this Demurrer. The requirement to "meet and confer" is met.

Plaintiff failed to file a timely opposition to Defendant's demurrer to the First Amended Complaint. The Court issued a tentative ruling on September 2, 2025 pursuant to court rules. The tentative ruling sustained the First Amended Complaint without Leave to Amend. Counsel for Plaintiff failed to file a timely contest to the tentative ruling and did not appear at the hearing on September 3, 2025. The Court entered a minute order adopting the Court's tentative ruling sustaining the demurrer without leave to amend, and dismissing this case.

Now, Plaintiff brings this Motion for Reconsideration pursuant to Cal. Code of Civ. Proc § 1008(a) and (b) claiming that there are new or different facts, circumstances, or law. Plaintiff claims to identify extenuating circumstances, as described in the Declaration of Counsel Ruben Arizmendi, and new law prohibiting foreclosure of "Zombie Loans," as detailed in a proposed, but unfiled, Second Amended Complaint. (The court docket reflects that Plaintiff attempted to file a Second Amended Complaint on August 20, 2025. It was rejected with the notation that "You need leave of court in order to file a second amended complaint. There is a hearing set for 9/3/25 regarding the demurrer to the first amended complaint.) Defendants' counsel claim that Plaintiff's counsel did meet and confer with him about filing a second amended complaint.

Plaintiff claims that these "developments warrant reconsideration of the Courts prior ruling to ensure a just and equitable outcome." The Motion was filed on September 11, 2025 and was amended on September 29, 2025. Plaintiff's counsel did not explain why he failed to file a timely opposition to Defendants' demurrer, failed to contest the Court's tentative ruling and failed to appear at the hearing.

On December 3, 2025, Defendants filed an opposition, supported by the Declaration of Counsel, Jonathan Cahill. In summary, the opposition asserts that Plaintiff's motion does not set forth new or different facts, circumstances or law; that Plaintiff failed to oppose the demurrer and failed to meet and confer to file a second amended complaint. Accordingly, Plaintiff does not meet the requisite elements for reconsideration. Plaintiff's counsel did not file a timely reply brief.

Analyses

Under Cal. Code of Civ. Proc § 1008(a):

When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the